

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Will is not self-proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

20. S-PR-0014201 In Re the Mae Essington 2003 Liv Trust

Missing sufficient notice of hearing for petition to instruct trustee. Notice as filed and served states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

It is recommended the petition for instructions be denied. The petition does not allege facts sufficient to establish that a 2003 trust existed or exists now, or, if it does, that Randy Geering Sr is the trustee. The petition admits that the identification of the trustee is merely presumed by petitioner. Petitioner offers no information about title to the modular home; if it is titled outside the trust, it does not become an asset by operation of the will until the will is probate and the estate is administered. The petition is factually and legally insufficient to support any requested relief.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

21. S-PR-0014202 In Re the Estate of Gates, Cathy M

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing original will, Prob.C. § 8200(a).

22. S-PR-0014203 In Re the Estate of Rutherford, James Jr.

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

23. S-PR-0014204 In Re the Estate of Brafford, Thelma Joyce Merie

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department